

BC424856 BC424856

County: los-angeles

Division: Civil Law and Motion

Department: 309

Hearing date: 2026-08-18

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Case Number: BC424856 Hearing Date: August 18, 2026 Dept: 309

Superior Court of California

County of Los Angeles

DEPARTMENT

309

TENTATIVE RULING

VERNON FIFTY TWO, LLC

vs.

VERNON

PROPERTIES, INC., et al.

Case

No.: BC424856

Hearing Date: August 18, 2026

Plaintiff's motion for sanctions is DENIED.

On 10/27/2009, Plaintiff Vernon Fifty-Two, LLC

(Plaintiff) filed suit against Vernon Properties, Inc. and Azar Barani,

alleging: (1) breach of contract; (2) fraud; (3) conversion; and (4) alter ego liability.

On

7/10/2026, Plaintiff moved for
sanctions pursuant to CCP section 128.7.

Discussion

Plaintiff moves for sanctions on the
grounds that Defendant Azar (Fatemeh) Barani's
(Barani) Motion to Vacate Void Renewal of Judgment and Void Post-Judgment
Enforcement, filed 3/6/2026 was (1) factually frivolous, (2) legally frivolous,
(3) procedurally defective, and (4) filed for the improper purpose of
needlessly increasing the costs of litigation, harassing, and injuring
Plaintiff.

After review, the Court disagrees.

While Defendant Barani's motion was ultimately denied, it
was based on a weighing of arguments and prejudice which ultimately favored
Plaintiff. In other words, the denial of Barani's motion was based on the
persuasiveness of arguments advanced rather than any inherent frivolity in
Barani's motion.

Based on the foregoing, Plaintiff's motion for sanctions
is denied.

It is so ordered.

Dated: August
, 2026

Hon. Jon R.
Takasugi

Judge of the
Superior Court

Parties who intend to submit on this tentative must
send an email to the court at
by 4 p.m. the day prior as directed by the instructions provided on the court
website at www.lacourt.org. If a party submits

on the tentative, the party's email must include the case number and must identify the party submitting on the tentative.

If all parties to a motion submit, the court will adopt this tentative as the final order. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. For more information, please contact the court clerk at (213) 633-0517.